

24STCV31938 24STCV31938

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Case Number: 24STCV31938 Hearing Date: August 21, 2026 Dept: 309

Superior Court of California

County of Los

Angeles

DEPARTMENT 17

TENTATIVE RULING

STEPHON WATFORD

vs.

PROMISE ASSISTED LIVING, LLC

Case

No.: 24STCV31938

Hearing Date: August 21, 2026

Defendants' motion for a judgment on the pleadings as to the fourth cause of action is SUSTAINED IN PART, OVERRULED IN PART. Defendants' motion is SUSTAINED, WITHOUT LEAVE TO AMEND, as to the report made to Adult Protective Services and correspondence to Child Support Services regarding Plaintiff's elder abuse. Defendants' motion is OVERRULED as to the remaining statements.

On 12/4/2024,

Plaintiff Stephon Watford (Plaintiff) filed suit against Promise Assisted

Living, LLC. On 11/3/2025, Plaintiff filed a first amended complaint (FAC), alleging: (1) whistleblower retaliation; (2) retaliation and discrimination; (3) wrongful termination; and (4) defamation.

On 6/16/2026, Defendants moved for judgment on the pleadings as to the fourth cause of action.

Discussion

Defendants move for a judgment on the pleadings on the fourth cause of action on the grounds that Plaintiff has failed to allege facts sufficient to state a cause of action for defamation or a basis for liability as to Defendants.

The Elder Abuse and Dependent Adult Civil Protection Act (the Act), codified at Welfare & Institutions Code (WIC) section 15600 et seq. (See WIC sections 15630, 15634), protects mandated reporters of suspected elder abuse as a matter of law from any and all liability. The immunity provided by the law is “sweeping in its breadth.” (*Easton v. Sutter Coast Hospital* (2000) 80 Cal.App.4th 485, 491) (applying “a nearly identical immunity provision for mandated reporters in the context of child abuse . . . courts have concluded that mandated reporters may not be sued [] for ‘conduct committed in furtherance of diagnosing whether abuse occurred,’”) (internal citations omitted).) “Without exception, our appellate courts have concluded that immunity is a key ingredient in maintaining the Act’s integrity and thus have rejected efforts aimed at narrowing its protection.” (*Santos v. Kisco Senior Living, LLC* (2016) 1 Cal.App.5th 862, 865) (citing *Stecks v. Young* (1995) 38 Cal.App.4th 365, 375)

Under the law, this absolute immunity from liability applies even to reporting that is alleged to be fabricated, knowingly false or maliciously made. (See *Valero v. Spread Your Wings, LLC* (2023) 88 Cal.App.5th 243, 258-266; *Santos*, supra, 1 Cal.App.5th at 873 (“The immunity extends even to negligent, knowingly false, or malicious reports of abuse”).) “Based upon the purpose of the immunity provision and upon the Legislature’s drafting of [WIC] section 15634 ...the privilege created by the section is absolute rather than qualified.” (*Id.* at 491.)

Here, according to his own pleadings, Plaintiff’s Defamation Claim “arise[s] from statements made internally among Defendant’s employees and to

third parties in the community, specifically, statements contained in fabricated 'Employee Disciplinary Action' forms and in correspondence to outside entities." (See RJN, Exhibit B at 2:9- 11; Exhibit D, ¶¶ 3-10 at 2:9-28.) The "entities" Plaintiff refers to include a report made to Adult Protective Services and correspondence to Child Support Services regarding Plaintiff's elder abuse. (See id., Exhibit B at 3:25-4:28; Exhibit D, ¶¶ 31-32 at 5:14-23).

Employers and employees working with elderly and/or disabled individuals are by law mandated reporters. (WIC §§15630, 15634; Santos, 1 Cal.App.5th at 866 (holding mandated reporter immune under Act for actions related to report of suspected elder abuse).) Accordingly, the Court agrees that those alleged defamatory statements identified by Plaintiff cannot, as a matter of law, support a cause of action for defamation.

Defendants further argue that alleged statements of Defendants made in disciplinary action reports are also protected from liability by the common interest privilege, because "[i]t is well-established that communications made without malice on subjects of mutual interest are privileged and non-actionable. (Cal. Civ. Code § 47(c); Brown v. Kelly Broadcasting Co. (1989) 48 Cal.3d 711, 725; CACI No. 1723.)" (Motion, 9:18-20.)

A published statement is privileged if made "without malice, to a person interested therein, (1) by one who is also interested, or (2) by one who stands in such a relation to the person interested as to afford a reasonable ground for supposing the motive for the communication to be innocent, or (3) who is requested by the person interested to give the information." (Cal. Civ. Code § 47(c).) "Privilege is an affirmative defense to a claim of defamation. [Citation.]" (Beroiz v. Wahl (2000) 84 Cal.App.4th 485, 492.)

Here, Plaintiff alleges Defendants' allegedly defamatory statements were included in "Employee Disciplinary Action" forms in the course of business as supervisors and management of Plaintiff's former employer, PAL. (See id., Exhibit D, ¶ 12 at 3:5-7; ¶ 30 at 5:11-13, ¶ 34 at 6:1-4). Plaintiff further alleged that his claim against Defendants "surfaced only when defendant produced write-ups on May 14, 2025" (See RJN, Exhibit A at 3:10-15, 4:15-22.)

However, whether or not this was done in malice is a factual determination not properly made on the pleadings. Accordingly, the Court

declines to find that Plaintiff cannot state a defamation claim, as a matter of law, based on the alleged statements of Defendants made in disciplinary action reports.

Finally, the Court disagrees that Plaintiff has not properly pled publication at the pleadings stage. As Defendants themselves note, the First Amended Complaint pleads Defendants' allegedly defamatory statements were "shared with others", including "other agents and employees of Defendants and members of the community" and that "Restum testified that he intends to further republish these false statements, including to prospective employers of Plaintiff". (See RJN, Exhibit A at 3:10-15, 4:15-22; Exhibit B at 3:25-4:28; and Exhibit D, ¶ 29 at 5:7-9, ¶¶ 31 and 32 at 5:14-23 ¶ 33 at 5:24-25, ¶ 34 at 6:1-4, and ¶ 79 at 13:3-6.) Whether or not this is, in fact, true is a factual determination not made at the pleadings stage.

Based on the foregoing, Defendants' motion for a judgment on the pleadings as to the fourth cause of action is sustained in part, overruled in part. Defendants' motion is sustained, without leave to amend, as to the report made to Adult Protective Services and correspondence to Child Support Services regarding Plaintiff's elder abuse. Defendants' motion is overruled as to the remaining statements.

It is so
ordered.

Dated:
August , 2026

Hon. Jon R. Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must send an email to the court at by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If all parties to a motion submit, the court will adopt this

tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.